

**Court No. - 3**

**Case :-** WRIT - C No. - 21244 of 2022

**Petitioner :-** Diwan Chand Ahuja And Another

**Respondent :-** State Of U.P. And 5 Others

**Counsel for Petitioner :-** Some Narayan Mishra

**Counsel for Respondent :-** C.S.C., Anubhav Singh, Prakhar Tandon

**Hon'ble Surya Prakash Kesarwani, J.**

**Hon'ble Saurabh Srivastava, J.**

1. Heard Sri Some Narayan Mishra, learned counsel for the petitioners, learned Standing Counsel for the State-respondent, Sri Anubhav Singh, learned counsel appearing on behalf of the respondent nos.2, 3 and 4 and Sri Prakhar Tandon, learned counsel for the private respondent nos.5 and 6.

2. This writ petition has been filed praying for the following relief:-

*“i) Issue a Writ, Order or Direction in the nature of Certiorari to quash the Impugned Order dated 29.06.2022 passed by respondent no.4 (Annexure No.8 to this writ petition).*

*ii) Issue a Writ, Order or Direction in the nature of Mandamus to direct the respondent no.4 to issue a prepaid connection in favour of petitioner no.1”*

3. According to the petitioners, they were tenant under a registered lease agreement dated 06.11.2017. The tenancy started from 01.01.2018 and ended on 31.12.2021. In clause nos.7, 8 and 9 of the aforesaid registered lease deed, the parties had agreed as under:-

"7- यह कि यह किरायेदारी 04 वर्ष के लिये निष्पादित की जा रही है। 04 वर्ष पश्चात यह किरायेदारी आगे नहीं बढ़ायी जायेगी और द्वितीयपक्ष उक्त फ्लैट को खाली करके उसका कब्जा प्रथमपक्ष को प्रदान कर देगा।

8. यह कि उपरोक्त किरायेदारी में बिजली का बिल व अन्य सरकारी देय कर सम्मिलित नहीं है। बिजली के बिल का भुगतान मीटर रीडिंग के अनुसार केस्को में करेगा और उसकी रसीदे किराये के साथ हर माह प्रथमपक्ष को प्रदान करेगा।

9. यह कि द्वितीयपक्ष उक्त फलैट में अपने नाम से या किसी अन्य नाम से किसी भी प्रकार स्थाई/अस्थायी/पोस्टपेड या प्रीपेड विद्युत कनेक्शन प्राप्त नहीं करेगा।"

4. "Para 2.2 (oo) of the U.P. Electricity Supply Code, 2005 (hereinafter referred to as the 'Code 2005') reads as under:-

“Occupier” means the owner or authorized person in occupation of the premises where energy is used or proposed to be used.”

5. Para 4.3 of the Code 2005 provides provisions for new connections. Para 4.4 of the Code 2005 provides provisions for processing of application for supply of electricity. Both the Para 4.3 and 4.4 of the Code, 2005 are reproduced below:-

#### **"4.3- New Connections - General**

a) The system of supply and voltage shall depend on the category of the consumer and the load as per details given in Chapter 3.

b) 3 (4) [Application form for obtaining new connection and for enhancement / reduction of load shall be made available to the applicant free of charge at all offices of the Licensee. The Licensee shall also put them on its website for downloading. Photocopies of a blank form may be made by the applicant and shall be accepted by the Licensee. The Licensee shall endeavour to introduce systems facilitating electronic filing of the applications for release of connections through meters (all categories), or filing / processing for connections through prepaid meters provided commercially viable and sustainable technology is available.]

c) The licensee / local authority shall designate Officers / authority for accepting applications in respect of sanction of load (for different categories of load) for new connection and releasing load by way of giving new connection. However the local authority for a rural area may frame its own procedure for release of connection from time to time which shall as far as possible be in conformity to approved guidelines/specifications / costs specified by Commission.

d) All information relating to procedure, fees, designated officers for releasing new connections may be displayed on the notice boards of Subdivision office, Divisional offices and offices of DGM's / GM's / office of licensee. Public information counters for new forms, filing, and disseminating information status in the above offices, with computerized facilities in all towns with a

population greater than 10 lakhs may be made operational within a time frame of one year.

e) The electronic filing of a new application, status of connection pending to be released, and tracking of status of a connection through IVRS facility may also be made possible in a phased manner in all cities, through use of information technology, on the internet website, centralized call centres, and proper linking with the subdivision / Division / DGM / GM offices.

f) 3 (1) [(i) It will be the duty of the seller and of the purchaser to find out the outstanding electricity dues up to the date of sale, and further that both seller and purchaser will be either/or, jointly and severally liable to pay the outstanding electricity dues/ obtain No dues certificate.

(ii) Before sale of a premise is made, the outstanding dues will be cleared and, in the alternative the deed to agreement / sale will specifically mention the outstanding dues and the method of its payment. "Outstanding dues" means all dues pending on a premises including late payment surcharge.

(iii) In case the no-dues certificate is not obtained by the old owner, new owner before purchase of property may approach the licensee for no-dues certificate, by giving the reference of the connection in said premises. The licensee shall either intimate the pending dues, if any, on the premises or issue no dues certificate within 30 working days from the date of application.

(iv) The outstanding dues will be first charge on the assets of the company, and the licensee shall ensure that this is entered in an agreement with new applicant.

(v) The recovery proceedings against the defaulting consumer, and where the defaulting consumer is a company, from the Directors of the company, shall be ensured. Where a financial institution has auctioned the property without consideration to licensees charge on assets, claims may be lodged with the concerned financial institution with diligent pursuance.

(vi) In case the electricity connection to the said premises was given with the consent of house owner, such person shall ensure the payment of all arrears/ dues of electricity by the tenant before the tenant vacates the premises.

(vii) However the above conditions shall not apply if inconsistent with the provision of any higher court order or an order as a consequence to it.

(viii) The application shall be processed by licensee on clearing of dues.]

g) Where the property has been legally sub-divided, the outstanding dues for the consumption of energy on such premises, if any, shall be divided on pro-rata basis. 22

h) A new connection to such sub-divided premises shall be given only after the share of outstanding dues attributed to such sub-divided premises, is duly paid by the applicant. Licensee shall not refuse connection to an applicant only on the ground that, dues on the other portion(s) of such premises have not been paid, nor shall the licensee demand record of last paid bills of other portion(s) from such applicants."

#### **4.4 Processing of Application for Supply:**

"(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with - attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval / permission / NOC of the local authority, if required under any law / statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's / certified addresses.

(v) 3(4) [Work completion and Test certificate, on the prescribed format (Annexure 4.4), given by the licensed electrical contractor can be submitted later but prior to commencement of supply.]

(vi) Owner's consent for getting new supply connection. (Annexure 4.3)

(b) Licensee shall arrange to assist the applicants, if required, in completing the application form.

(c) The Licensee shall verify the application and the enclosed documents at the time of receipt of application. Written acknowledgement shall be issued on the spot. The acknowledgement shall indicate the date of proposed inspection (not later than 10 days in electrified areas, and two weeks in un-electrified areas) if the application is complete, otherwise it should mention the shortcomings if the application is incomplete.

(d) No application for the new connection for an electrified area shall be refused under any circumstances if it complies with statutory requirements and is in conformity with Act. In case consumer has not been intimated within stipulated period about any deficiencies in his application, the application shall be deemed to have been accepted for processing by the licensee.

(e) Licensee shall not be responsible if the reasons for delay are on account of Right of Way, acquisition of land, technical feasibility and lack of transmission capacity etc, over which the licensee has no reasonable control, provided the reasons for the expected delay are communicated to the applicant within the period specified for energisation.

(f) If any information furnished in application form is found wrong or the installation is defective or the energisation would be in violation of provision of Act / Electricity Rules / Tariff Order, the licensee shall not sanction the load and shall intimate the applicant the shortcomings / reasons thereof in writing on the spot as far as possible."

6. After termination of the rent agreement on expiry of the period of lease, the petitioner no.1 applied for a separate post paid electricity connection as consented by his son i.e. the petitioner no.2 before the respondent no.4 on 08.01.2022 followed by indemnity bond dated 14.06.2022.

7. It is apparent from the pleadings of the petitioner that an Original Suit No.46 of 2022 (Smt. Darshan Arora and another Vs. Kanpur Electricity Supply Company Ltd. and others) has also been instituted by the respondent no.5 with specific prayer for not extending any separate electricity connection in favour of the

petitioners in Flat No.S2, Second Floor, House No.117/H-1/185 and 185A, Pandu Nagar, Kanpur Nagar.

8. Learned counsel for the petitioners has relied upon the judgment of Hon'ble the Supreme Court in the case of **Dilip (Dead) through Lrs. Vs. Satish and others (2022 LiveLa1-8w (SC) 570)**, as under:-

"It is now well settled proposition of law that electricity is a basic amenity of which a person cannot be deprived. **Electricity cannot be declined to a tenant on the ground of failure/refusal of the landlord to issue no objection certificate, All that the electricity supply authority is required to examine is whether the applicant for electricity connection is in occupation of the premises in question.**"

9. Learned counsel for the respondent nos.2, 3 and 4 supported the speaking order dated 29.06.2022 on the ground that the order has been passed strictly as per provisions of the U.P. Electricity Supply Code, 2005. Para 2.2 of the Code confers right to obtain electricity connection by an occupier i.e. owner or authorized person in occupation of the premises where energy is used or proposed to be used. He also referred to paras 4.3 and 4.4 of the Code.

10. We have carefully considered the submissions of learned counsels for the parties.

11. The judgment of Hon'ble the Apex Court relied by learned counsel for the petitioners is distinguishable on facts of the present case. The case of **Dilip (supra)** was related to fabrication of “no objection certificate” submitted by the tenant, whereupon the FIR was lodged by the landlord against the tenant, but in the case before us, it is admitted factual position by both the parties, that the tenancy has already expired on 31.12.2021 as per the registered rent agreement

and more so, the essential condition for obtaining the valid electricity connection was not fulfilled by the petitioners.

12. The word 'occupier' mentioned in Para 2.2 of the Code 2005, cannot be read merely as an occupier but it has to be read as legal occupier and as such, the case of the petitioner does not fall under the category of Para 2.2 of the Code 2005.

13. Paragraphs 7, 8 and 9 of the tenancy agreement dated 6.11.2017 contain clear stipulation that the tenancy is only for four years w.e.f. 01.01.2018 and thereafter the period of tenancy shall not be extended and the tenants i.e. the petitioners have to handover physical possession of the flat in question to the landlord. It has also been provided in the aforesaid rent agreement that the petitioners either in their name or in the name of any other person, shall not obtain any permanent or temporary or postpaid or prepaid electricity connection. The entire rights of the petitioners are based on the registered lease agreement dated 06.11.2017. As per the aforesaid registered lease agreement, the petitioners have no right either to occupy or to obtain an electricity connection in their name or in the name of any other person. Therefore, they cannot be said to be in lawful occupation of the flat in question. As per clause 9 of the agreement, the petitioners have no right to obtain electricity connection in the flat in question either in their own name or in the name of any other person. Therefore, denial of electricity connection by the respondent no.4 by the impugned speaking order dated 29.06.2022, cannot be said to suffer from any manifest error of law. The writ petition has no merit. Therefore, it deserves to be dismissed.

14. For all the reasons aforestated, we do not find any merit in the writ petition. Consequently, the present writ petition is **dismissed**.

**Order Date :-** 30.8.2022

Vivek Kr./NLY